

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
MICHAEL GIRARD and JERMAINE GRICE,

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, P.O. JASON ZUMMO, P.O.
"JOHN" GRANVILLE, P.O.'s "JOHN DOE" 1 - 5, AND
OTHER POLICE OFFICERS WHOSE IDENTITIES
ARE IN THE SOLE POSSESSION OF THE NEW
YORK CITY POLICE DEPARTMENT,

Defendants.
-----X

Index No.:

SUMMONS

Plaintiff designates Queens
County as the place of trial.

The basis of venue is:
Location of Incident.

Plaintiff MICHAEL GIRARD
resides at: 111-28 209th Street,
Queens Village, New York 11429

Plaintiff JERMAINE GRICE
resides at: 179-49 11th Road,
St. Albans, New York 11434

Date filed: September 13, 2013

To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the plaintiffs' attorneys, within twenty days after the services of this Summons exclusive of the day of service, where service is made by delivery upon you personally within the state, or within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
May 3, 2013


GENTILE & ASSOCIATES
By: LAURA GENTILE
Attorneys for Plaintiffs

MICHAEL GIRARD and JERMAINE GRICE
233 Fifth Avenue
New York, NY 10016
Tel: (212) 689-6009
Fax: (212) 213-1093

To:
The City of New York
Corporation Counsel
100 Church Street, 4th Floor
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
MICHAEL GIRARD and JERMAINE GRICE,

Plaintiffs,

-against-

Index No.:

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, P.O. JASON ZUMMO, P.O.
"JOHN" GRANVILLE, P.O.'s "JOHN DOE" 1 - 5, AND
OTHER POLICE OFFICERS WHOSE IDENTITIES
ARE IN THE SOLE POSSESSION OF THE NEW
YORK CITY POLICE DEPARTMENT,

Defendants.

-----X

Plaintiffs MICHAEL GIRARD and JERMAINE GRICE, by their attorneys Gentile &
Associates, as and for their complaint against defendants, state, upon information and belief, as
follows:

1. At the time of the commencement of this action, plaintiff MICHAEL GIRARD was
and still is a resident of the County of Queens, City and State of New York.
2. At the time of the commencement of this action, plaintiff JERMAINE GRICE was
and still is a resident of the County of Queens, City and State of New York.
3. The cause of action alleged herein arose in the County of Queens, City and State of
New York.
4. This action falls within one of more of the exceptions set forth in CPLR § 1602.
5. Prior hereto, on August 23, 2012, and within the time prescribed by law, a sworn
Notice of Claim stating, among other things, the time when and place where the injuries and
damages were sustained, together with Plaintiffs' demands for adjustment thereof was duly served
on the claimants' behalf on the Comptroller for the City of New York and that thereafter said
Comptroller for the City of New York refused or neglected for more than thirty (30) days, and up to

the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

6. Plaintiffs have complied with the City of New York's demand pursuant § 50-h of the General Municipal Law, and hearings were conducted on December 11, 2012.

7. At all times relevant herein, defendant THE CITY OF NEW YORK was and still is a municipal corporation.

8. At all times relevant herein, defendant the NEW YORK CITY POLICE DEPARTMENT was and still is a department of The City of New York.

9. At all times relevant herein, there existed a premises known as "Western Beef" supermarket, addressed 130-35 Merrick Blvd, Springfield Gardens, New York 11434, located in the County of Queens, City and State of New York.

10. Upon information and belief, at all times relevant herein, there existed a public ATM bank machine at or near the main entrance to the aforesaid premises.

11. At all times relevant herein, defendant THE CITY OF NEW YORK, by its agents, servants and/or licensees, operated a police force known as the NEW YORK CITY POLICE DEPARTMENT and its personnel.

12. At all times relevant herein, defendant THE CITY OF NEW YORK, by its agents, servants and/or licensees, managed a police force known as the NEW YORK CITY POLICE DEPARTMENT and its personnel.

13. At all times relevant herein, defendant THE CITY OF NEW YORK, by its agents, servants and/or licensees, maintained a police force known as the NEW YORK CITY POLICE DEPARTMENT and its personnel.

14. At all times relevant herein, defendant THE CITY OF NEW YORK, by its agents,

servants and/or licensees, supervised a police force known as the NEW YORK CITY POLICE DEPARTMENT and its personnel.

15. At all times relevant herein, defendant THE CITY OF NEW YORK, by its agents, servants and/or licensees, controlled a police force known as the NEW YORK CITY POLICE DEPARTMENT and its personnel.

16. At all times relevant herein, defendant the NEW YORK CITY POLICE DEPARTMENT was acting within the scope and in furtherance of its employment with defendant THE CITY OF NEW YORK.

17. At all times relevant herein, defendant P.O. JASON ZUMMO was acting within the scope and in furtherance of his employment with defendant the NEW YORK CITY POLICE DEPARTMENT.

18. At all times relevant herein, defendant P.O. JASON ZUMMO was acting within the scope and in furtherance of his employment with defendant THE CITY OF NEW YORK.

19. At all times relevant herein, defendant P.O. "JOHN" GRANVILLE was acting within the scope and in furtherance of his employment with defendant the NEW YORK CITY POLICE DEPARTMENT.

20. At all times relevant herein, defendant P.O. "JOHN" GRANVILLE was acting within the scope and in furtherance of his employment with defendant THE CITY OF NEW YORK.

21. At all times relevant herein, defendants P.O.'s "JOHN DOE" 1 – 5 were acting within the scope and in furtherance of their employment with defendant the NEW YORK CITY POLICE DEPARTMENT.

22. At all times relevant herein, defendants P.O.'s "JOHN DOE" 1 – 5 were acting

within the scope and in furtherance of their employment with defendant THE CITY OF NEW YORK.

23. At all times relevant herein, defendants OTHER POLICE OFFICERS WHOSE IDENTITIES ARE IN THE SOLE POSSESSION OF THE NEW YORK CITY POLICE DEPARTMENT were acting within the scope and in furtherance of their employment with defendant the NEW YORK CITY POLICE DEPARTMENT.

24. At all times relevant herein, defendants OTHER POLICE OFFICERS WHOSE IDENTITIES ARE IN THE SOLE POSSESSION OF THE NEW YORK CITY POLICE DEPARTMENT were acting within the scope and in furtherance of their employment with defendant THE CITY OF NEW YORK.

25. On or about June 26, 2012, plaintiff MICHAEL GIRARD was lawfully present at the premises known as Western Beef Supermarket, located at 130-35 Merrick Blvd, Springfield Gardens, New York 11434, in the County of Queens, City and State of New York.

26. On or about June 26, 2012, plaintiff MICHAEL GIRARD was unlawfully detained, searched, and arrested without warrant or probable cause, in violation of his civil rights pursuant to 42 U.S.C. §1983.

27. On or about June 26, 2012 and continuing thereafter, plaintiff MICHAEL GIRARD was caused to be subjected to public humiliation, defamation, and severe emotional distress by the herein referenced Police Officers.

28. Without any proof of the criminal charges alleged, plaintiff MICHAEL GIRARD was subjected to malicious prosecution instituted by the Queens County Office of the District Attorney.

29. No negligence or wrongful act of any kind on the part of the plaintiff MICHAEL

GIRARD contributed to the occurrence alleged herein in any manner whatsoever.

30. On or about June 26, 2012, plaintiff JERMAINE GRICE was lawfully present at premises known as Western Beef Supermarket, addressed 130-35 Merrick Blvd, Springfield Gardens, New York 11434, located in the County of Queens, City and State of New York.

31. On or about June 26, 2012, plaintiff JERMAINE GRICE was unlawfully detained, searched, and arrested without warrant or probable cause, in violation of his civil rights pursuant to 42 U.S.C. §1983.

32. On or about June 26, 2012 and continuing thereafter, plaintiff JERMAINE GRICE was caused to be subjected to public humiliation, defamation, and severe emotional distress by the herein referenced Police Officers.

33. On or about June 26, 2012, plaintiff JERMAINE GRICE was unlawfully detained, subjected to a complete automobile search, personally searched, and arrested without warrant or probable cause, in violation of his civil rights pursuant to 42 U.S.C. §1983.

34. Without any proof of the criminal charges alleged, plaintiff JERMAINE GRICE was subjected to malicious prosecution instituted by the Queens County Office of the District Attorney.

35. No negligence or wrongful act of any kind on the part of the plaintiff JERMAINE GRICE contributed to the occurrence alleged herein in any manner whatsoever.

36. At all times herein, defendants, and each of them, were acting within the scope and in the furtherance of their employment with the New York City Police Department and the City of New York.

FIRST CAUSE OF ACTION

37. The wrongful search, seizure, assault and malicious prosecution herein and the results thereof were due to and caused by the joint, several and concurrent negligence of the defendants their

agents, servants, employees and/or licensees in negligently, carelessly, maliciously, wrongfully, recklessly and with gross negligence causing, allowing and/or permitting the plaintiffs to be physically assaulted, battered, maliciously prosecuted, and deprived of his civil rights; in the use of wantonness, recklessness and carelessness that accompanied the unbridled discretion in the malicious prosecution, and the application of excessive physical force; in effecting a pre-textual arrest; in failing to provide sanitary conditions during the plaintiffs' wrongful incarceration; in racially and economically profiling the plaintiffs; in failing to guard against the use of improper prosecution procedures and excessive physical force against to members of the public, including the plaintiffs; in the careless, reckless and negligent use of arrest and prosecution procedures, and excessive force; in the wrongful, willful, malicious and negligent and grossly negligent use of excessive physical force such that plaintiffs were physically assaulted and deprived of his civil rights; in failing to properly hire and supervise the selection of competent police officers; in negligently selecting, hiring, training and supervising police officers such that said officers would negligently, carelessly, recklessly, wrongfully, willfully, maliciously and with gross negligence employ the use of needless and/or excessive physical force and improperly perform the other acts of negligence that led to the events alleged herein; in failing to give proper instruction and training to its police officers in the necessary and safe use of physical force; in the negligent and careless hiring, screening, training and supervision of their police personnel; in promulgating, maintaining, instigating, employing and/or using substandard policies and practices in arrest procedures and unnecessary and unreasonable physical force when the use of physical force was not necessary or required; in wrongfully searching, seizing, and retaining the plaintiffs' personal property and unnecessarily delaying the return of same without justification; in failing to punish improper police procedures; in failing to retrain and reinstruct personnel in proper police procedures; in failing abide to proper police procedures, state and federal constitutional standards in effecting an automobile search;

in failing to act with reasonable prudence in arrest procedures and in the use of physical force so as to avoid the injury; in failing to apply handcuffs in a way which did not physically harm the plaintiffs; in failing to identify themselves as law enforcement officers before effecting the arrest of the plaintiffs; in failing to base the search and seizure of the plaintiffs upon probable cause and/or an articulable reasonable suspicion; in failing to act with reasonable prudence by use of proper arrest procedures and in employing physical force when the use of such physical force was not necessary or required; in failing to act with reasonable prudence in the necessary, safe use of physical force so as to avoid injury; in failing to act with reasonable prudence under the circumstances; in the improper arrest and prosecution and the unnecessary use of physical force which caused injury; in failing to take heed of the plaintiffs' pre existing medical conditions; in failing to take heed of the plaintiffs' obvious medical condition; in discarding the plaintiff JERMAINE GRICE's protective arm device; in failing to address the plaintiff JERMAINE GRICE's complaints of pain; in failing to exercise that care commensurate with the danger involved; in failing to properly hire, retain, instruct, train and supervise their employees, servants, agents and/or licensees; in failing to properly determine when arrest and prosecution is appropriate and when the use of physical force is necessary or required; in failing to properly hire, retain, instruct, train and supervise their employees, servants, agents and/or licensees to approach and otherwise interact with members of the public; in violating and otherwise failing to adhere to and properly follow guidelines and standards used and promulgated by the New York City Police Department; in violating and otherwise failing to adhere to and properly follow good and accepted guidelines and standards of police work practice then and there prevailing; and in failing to exercise due care and proper professional judgment under the circumstances then and there prevailing at the time of the occurrence.

38. As a result of the foregoing, plaintiff MICHAEL GIRARD was caused to sustain serious injuries and to have suffered pain, shock, mental anguish public and private humiliation; these

injuries and their effects will be permanent; and as a result of said injuries plaintiff has been caused to incur and will continue to incur expenses for legal representation, and medical care; and plaintiff was and will continue to be rendered unable to perform his normal activities and duties and has sustained a resultant loss therefrom.

39. As a result of the foregoing, plaintiff JERMAINE GRICE was caused to sustain serious injuries and to have suffered pain, shock, mental anguish public and private humiliation; these injuries and their effects will be permanent; and as a result of said injuries plaintiff has been caused to incur and will continue to incur expenses for legal representation, and medical care; and plaintiff was and will continue to be rendered unable to perform his normal activities and duties and has sustained a resultant loss therefrom.

40. As a result of the foregoing, plaintiff MICHAEL GIRARD was damaged in an amount greater than the jurisdictional limits of all lower courts.

41. As a result of the foregoing, plaintiff JERMAINE GRICE was damaged in an amount greater than the jurisdictional limits of all lower courts.

SECOND CAUSE OF ACTION

42. Plaintiff repeats and realleges every allegation set forth above with the same force and effect as if more fully set forth at length hereat.

43. Beginning on June 26, 2012 and continuing through plaintiff's release from custody and the termination of all charges against him, plaintiff MICHAEL GIRARD was caused to be deliberately, maliciously, willfully and with gross negligence physically detained, charged with crimes, assaulted, and deprived of his property by defendants, their agents, servants, employees and/or licensees.

44. Beginning on June 26, 2012 and continuing through plaintiff's release from custody and the termination of all charges against him, plaintiff JERMAINE GRICE was caused to be deliberately, maliciously, willfully and with gross negligence physically detained, charged with crimes, assaulted, and deprived of his property by defendants, their agents, servants, employees and/or licensees.

45. The aforementioned occurrence took place due to the willful, wanton and intentional acts and/or omissions of the defendants and their employees, agents, servants and/or licensees.

46. As a result of the foregoing, plaintiff MICHAEL GIRARD was caused to sustain serious injuries and to have suffered pain, shock, mental anguish, public and private humiliation; these injuries and their effects will be permanent; and as a result of said injuries plaintiff MICHAEL GIRARD has been caused to incur and will continue to incur expenses for legal representation and medical care; and plaintiff was and will continue to be rendered unable to perform his normal activities and duties and has sustained a resultant loss therefrom.

47. As a result of the foregoing, plaintiff JERMAINE GRICE was caused to sustain serious injuries and to have suffered pain, shock, mental anguish, public and private humiliation; these injuries and their effects will be permanent; and as a result of said injuries plaintiff JERMAINE GRICE has been caused to incur and will continue to incur expenses for legal representation and medical care; and plaintiff was and will continue to be rendered unable to perform his normal activities and duties and has sustained a resultant loss therefrom.

48. As a result of the foregoing, plaintiff MICHAEL GIRARD was damaged in an amount greater than the jurisdictional limits of all lower courts.

49. As a result of the foregoing, plaintiff JERMAINE GRICE was damaged in an amount greater than the jurisdictional limits of all lower courts.

THIRD CAUSE OF ACTION

50. Plaintiffs repeat and reallege every allegation set forth above with the same force and effect as if more fully set forth at length hereat.

51. The above stated acts and omissions constituted deprivation of plaintiffs' rights and freedoms and under the Federal and State constitutional and civil rights laws and further, constitute actionable wrongs pursuant to 42 U.S.C. § 1983, and the Monell Doctrine.

52. As a result of the foregoing, plaintiff MICHAEL GIRARD was caused to sustain serious injuries and to have suffered pain, shock, mental anguish public and private humiliation; these injuries and their effects will be permanent; and as a result of said injuries plaintiff MICHAEL GIRARD have been caused to incur and will continue to incur expenses for legal representation and medical care; and plaintiff MICHAEL GIRARD was and will continue to be rendered unable to perform his normal activities and duties and have sustained a resultant loss therefrom.

53. As a result of the foregoing, plaintiff MICHAEL GIRARD was damaged in an amount greater than the jurisdictional limits of all lower courts.

54. As a result of the foregoing, plaintiff JERMAINE GRICE was caused to sustain serious injuries and to have suffered pain, shock, mental anguish public and private humiliation; these injuries and their effects will be permanent; and as a result of said injuries plaintiff JERMAINE GRICE have been caused to incur and will continue to incur expenses for legal representation and medical care; and plaintiff JERMAINE GRICE was and will continue to be rendered unable to perform his normal activities and duties and have sustained a resultant loss therefrom.

55. As a result of the foregoing, plaintiff JERMAINE GRICE was damaged in an amount greater than the jurisdictional limits of all lower courts.

FOURTH CAUSE OF ACTION

56. Plaintiffs repeat and reallege every allegation set forth above with the same force and effect as if more fully set forth at length hereat.

57. The acts complained of herein constitute negligent infliction of emotional harm.

58. As a result of the foregoing, plaintiff MICHAEL GIRARD was caused to sustain serious injuries and to have suffered pain, shock, mental anguish public and private humiliation; these injuries and their effects will be permanent; and as a result of said injuries plaintiff MICHAEL GIRARD has been caused to incur and will continue to incur expenses for legal representation and medical care; and plaintiff MICHAEL GIRARD was and will continue to be rendered unable to perform his normal activities and duties and have sustained a resultant loss therefrom.

59. As a result of the foregoing, plaintiff MICHAEL GIRARD was damaged in an amount greater than the jurisdictional limits of all lower courts.

60. As a result of the foregoing, plaintiff JERMAINE GRICE was caused to sustain serious injuries and to have suffered pain, shock, mental anguish public and private humiliation; these injuries and their effects will be permanent; and as a result of said injuries plaintiff JERMAINE GRICE has been caused to incur and will continue to incur expenses for legal representation and medical care; and plaintiff JERMAINE GRICE was and will continue to be rendered unable to perform his normal activities and duties and have sustained a resultant loss therefrom.

61. As a result of the foregoing, plaintiff JERMAINE GRICE was damaged in an amount greater than the jurisdictional limits of all lower courts.

FIFTH CAUSE OF ACTION

62. Plaintiff repeats and realleges every allegation set forth above with the same force and effect as if more fully set forth at length hereat.

63. The aforementioned occurrence took place due to the malicious, willful, wanton and intentional acts and/or omissions of the defendants and the employees, agents, servants and/or licensees of defendants all of whom were acting in the scope of their authority and within the scope and in the furtherance of their employment.

64. The acts complained of herein constitute malicious prosecution.

65. On or about June 26, 2012, without warrant, probable cause, or any reliable indicia of criminal activity and in violation of his civil rights, the plaintiff MICHAEL GIRARD was arrested without a warrant.

66. The arresting officers did not have probable cause to believe that plaintiff MICHAEL GIRARD was the perpetrator of any crime.

67. At all times relevant herein, plaintiff MICHAEL GIRARD was lawfully present at the premises known as Western Beef, and located at 130-35 Merrick Blvd, Springfield Gardens, New York 11434, in the County of Queens, City and State of New York.

68. On or about June 26, 2012, without warrant, probable cause, or any reliable indicia of criminal activity and in violation of his civil rights, the plaintiff JERMAINE GRICE was arrested without a warrant.

69. The arresting officers did not have probable cause to believe that plaintiff JERMAINE GRICE was the perpetrator of any crime.

70. At all times relevant herein, plaintiff JERMAINE GRICE was lawfully present at the premises known as Western Beef, and addressed 130-35 Merrick Blvd, Springfield Gardens, New York 11434, located in the County of Queens, City and State of New York.

71. The aforementioned arresting officers that apprehended the plaintiffs were uniformed and arrived at the scene in marked and unmarked police vehicles.

72. There was no contraband found on the persons of the plaintiffs at the time of their arrest.

73. The aforementioned arresting officers did not present an arrest warrant.

74. The aforementioned arresting officers did not issue Miranda warnings.

75. The aforementioned arresting officers wrongfully detained, searched, and forcefully took plaintiffs into custody.

76. Plaintiffs were taken to the 113th Precinct Police Station, located in Queens, New York in handcuffs.

77. Plaintiffs were not informed of the charges against them and were detained in violation of their civil rights.

78. Plaintiff MICHAEL GIRARD was forced to defend himself for the improper criminal charges being maliciously prosecuted against him.

79. Plaintiff JERMAINE GRICE was forced to defend himself for the improper criminal charges being maliciously prosecuted against him.

80. The District Attorney had no evidence or probable cause to sustain the charges against the plaintiff MICHAEL GIRARD.

81. The District Attorney had no evidence or probable cause to sustain the charges against the plaintiff JERMAINE GRICE.

82. The District Attorney failed to file charges within the time limit provided by CPL § 30.30(1)(a).

83. The District Attorney charged the plaintiffs with felony offenses but had no evidentiary basis for same.

84. The District Attorney charged the plaintiffs with misdemeanor offenses but had no evidentiary basis for same.

85. The aforementioned criminal charges were adjourned in contemplation of dismissal.

86. Defendants deliberately and maliciously instituted a criminal prosecution against the plaintiff MICHAEL GIRARD, arising out of the aforementioned arrest and detention.

87. Defendants deliberately and maliciously instituted a criminal prosecution against the plaintiff JERMAINE GRICE, arising out of the aforementioned arrest and detention.

88. Defendants knew the criminal prosecution arising out of the aforementioned arrest was groundless.

89. The aforementioned criminal prosecution was adjourned in contemplation of dismissal, and plaintiff received a favorable termination on the merits.

90. There was no ambiguity of the lack of merit of the charges instituted against the plaintiffs.

91. The aforementioned prosecutions were undertaken with malice, without probable cause, and without any further investigation by defendants.

92. Defendants refused to terminate the aforementioned prosecutions despite knowledge of exculpatory facts.

93. As a result of the foregoing, plaintiff MICHAEL GIRARD was caused to sustain serious injuries and to have suffered pain, shock, mental anguish public and private humiliation; these

injuries and their effects will be permanent; and as a result of said injuries plaintiff MICHAEL GIRARD has been caused to incur and will continue to incur expenses for legal representation and medical care; and plaintiff MICHAEL GIRARD was and will continue to be rendered unable to perform his normal activities and duties and have sustained a resultant loss therefrom.

94. As a result of the foregoing, plaintiff MICHAEL GIRARD was damaged in an amount greater than the jurisdictional limits of all lower courts.

95. As a result of the foregoing, plaintiff JERMAINE GRICE was caused to sustain serious injuries and to have suffered pain, shock, mental anguish public and private humiliation; these injuries and their effects will be permanent; and as a result of said injuries plaintiff JERMAINE GRICE has been caused to incur and will continue to incur expenses for legal representation and medical care; and plaintiff JERMAINE GRICE was and will continue to be rendered unable to perform his normal activities and duties and have sustained a resultant loss therefrom.

96. As a result of the foregoing, plaintiff JERMAINE GRICE was damaged in an amount greater than the jurisdictional limits of all lower courts.

PUNITIVE DAMAGES

97. Plaintiffs repeat and reallege with the same force and effect as if more fully set forth hereat each and every paragraph of the complaint hereinbefore set forth above.

98. The acts complained of herein were performed with malice and willful intent and are beyond the bounds of a civilized society.

99. As a result of the foregoing, plaintiff MICHAEL GIRARD was caused to sustain serious injuries and to have suffered pain, shock, mental anguish public and private humiliation; these injuries and their effects will be permanent; and as a result of said injuries plaintiff MICHAEL

GIRARD has been caused to incur and will continue to incur expenses for legal representation and medical care; and plaintiff MICHAEL GIRARD was and will continue to be rendered unable to perform his normal activities and duties and has sustained a resultant loss therefrom.

100. As a result of the foregoing, plaintiff MICHAEL GIRARD was damaged in an amount greater than the jurisdictional limits of all lower courts.

101. As a result of the foregoing, plaintiff JERMAINE GRICE was caused to sustain serious injuries and to have suffered pain, shock, mental anguish public and private humiliation; these injuries and their effects will be permanent; and as a result of said injuries plaintiff JERMAINE GRICE has been caused to incur and will continue to incur expenses for legal representation and medical care; and plaintiff JERMAINE GRICE was and will continue to be rendered unable to perform his normal activities and duties and has sustained a resultant loss therefrom.

102. As a result of the foregoing, plaintiff JERMAINE GRICE was damaged in an amount greater than the jurisdictional limits of all lower courts.

WHEREFORE, Plaintiffs demand judgment against the defendants herein, in a sum exceeding the jurisdictional limits of all lower courts that would otherwise have jurisdiction, together with attorneys' fees and the costs and disbursements of this action.

Dated: New York, New York
September 13, 2013

Yours, etc.



LAURA GENTILE
GENTILE & ASSOCIATES

Attorneys for Plaintiffs

MICHAEL GIRARD and JERMAINE GRICE

233 Fifth Avenue

New York, New York 10016

(212) 689-6009

ATTORNEY'S VERIFICATION

LAURA GENTILE, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of GENTILE & ASSOCIATES, attorneys for plaintiffs. I have read the foregoing Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. This verification is made by me because plaintiffs are not presently in the county wherein this firm maintains their offices.

DATED: New York, New York
September 13, 2013



LAURA GENTILE

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
MICHAEL GIRARD and JERMAINE GRICE,

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,
P.O. JASON ZUMMO, P.O. "JOHN" GRANVILLE, P.O.'s "JOHN DOE" 1 - 5,
AND OTHER POLICE OFFICERS WHOSE IDENTITIES
ARE IN THE SOLE POSSESSION OF THE NEW YORK CITY POLICE
DEPARTMENT,

Defendants.
-----X

Index No.:

*** Summons & Verified Complaint***

GENTILE & ASSOCIATES

Attorneys for Plaintiff
233 Fifth Avenue
New York, New York 10016
Tel (212) 689-6009
Fax (212) 213-1093